

[doc. web n. 9944538]
Provision of August 31, 2023
Register of provisions
n. 390 of August 31, 2023

THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN the meeting held today, attended by
Prof. Pasquale Stanzione, President, Prof.
Ginevra Cerrina Feroni, Vice President, Dr.
Agostino Ghiglia, and Attorney Guido Scorza, members, and
Secretary General Fabio Mattei;

HAVING REGARD TO Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016 (hereinafter, "Regulation");

HAVING REGARD TO the Code regarding the protection of personal data, containing provisions for the adaptation of national legislation to Regulation (EU) 2016/679 (Legislative Decree of June 30, 2003, n. 196, as amended by Legislative Decree of August 10, 2018, n. 101, hereinafter "Code");

HAVING REGARD TO the complaint pursuant to Article 77 of the Regulation submitted to the Guarantor on June 13, 2022, by Ms. XX, who reported a violation of the rules on the protection of personal data – and in particular the provisions for the protection of minors – in relation to the publication by the newspaper "Il Giorno" of a photograph accompanying an article dated June 4, 2022, which reported the news of harassment experienced on the train by several girls, including her daughter, during their return trip from Gardaland; a trip during which they encountered a group of boys who had participated in a gathering in the area, which degenerated into fights and acts of violence;

HAVING REGARD TO the documentation attached to the request, specifically related to the online newspaper "ilgiorno.it";

CONSIDERING that the complainant has, in particular, represented that:

- the photograph depicted the protagonists of the incident, including her daughter, "grossly pixelated over the eyes, making her and the other girls recognizable within their circle of acquaintances and family, thus further aggravating the distress already caused by the experience they endured"; the photograph was reportedly taken by a journalist from the newspaper, XX, while the minors were in the waiting room of the Railway Police, without any authorization from the parents, in violation of Article 7 of the Ethical Rules;
- the photograph thus obtained was then used by various newspapers and widely found online, in some cases associated with the information (dangerous for the safety of those involved) that the minors would be able to recognize the harassers;
- on June 4, 2022, she requested the aforementioned journalist to remove the photograph and then, as the request went unanswered, sent – also without success – a formal request to the publisher of the newspaper on June 5, 2022;

CONSIDERING that the complainant raises similar grievances against another newspaper, which was then the subject of a separate complaint and therefore is treated with a separate provision;

CONSIDERING also that, due to the nature of the processing, the complaint submitted by Ms. XX is examined also as a report concerning the other minors depicted in the photograph attached to the complaint;

HAVING REGARD TO the communication of July 5, 2022, in which Robin S.r.l. - Publisher and data controller in question - provided a response to the request for information made by this Office on June 28, 2022 (note prot. 35139), specifying that:

- the article published in the newspaper "Il Giorno" was widely covered by all local and national newspapers and television media; both in print and online, the reporting was done with respect for the victims and their age;

- with particular reference to the photograph accompanying the online article, the girls depicted were made "unrecognizable by the pixelation of their eyes and by the FFP2 masks that covered a large part of their faces";
- following the complainant's request, received on June 5, 2022, at 4:41 PM, "the newspaper immediately activated to locate the photo and proceed with its removal from the archives and the online article" so that "by 9:30 PM on June 5, 2022, the photo was removed from the archives and no longer visible alongside the online article";

HAVING REGARD TO the email of September 19, 2022, in which the complainant supplemented her grievances highlighting the significant distress experienced by her daughter, due to the circulation of the photos taken by the aforementioned journalist and stating that:

- the journalist allegedly presented herself "under false pretenses as a lawyer" for the mother of another girl involved in the incident while taking the photos, not only without the consent of their parents but also through deception;
- there were also unmasked photographs of the girls circulating online, presumably provided by the aforementioned journalist who would have taken some shots before advising the girls to wear FFP2 masks;

HAVING REGARD TO the subsequent email of October 3, 2022, in which the complainant, having received the observations from Robin S.r.l., replied that:

- it is true that, after her complaints, on June 5, 2022, the photo of the girls was removed from the newspaper "Il Giorno", replaced by the image of two police officers, however "not even 36 hours later, the online newspaper 'il Giorno' had restored the photo of the girls, still accompanied by the subtitle 'five of the six...'

"girls victims of violence on the train";

- the journalist took photos in various ways, including without a mask, and presumably sold them to other newspapers "so much so that several newspapers, offering their apologies, declared that they had acquired them from Ms. XX";
- the daughter was, in fact, recognized by several people: neighbors, relatives, friends, and, above all, classmates from the high school she attended; this was also due to "a particular t-shirt that she often wore, personalized by her with a glitter marker, which only one publication took care to obscure";

HAVING REGARD to the note from the Office dated February 7, 2023 (prot. no. 21170/23) with which, pursuant to Article 166, paragraph 5, of the Code, Robin S.r.l. was informed of the initiation of proceedings for the possible adoption of the measures referred to in Article 58, paragraph 2, of the Regulation in relation to the alleged violation of Article 5, paragraph 1, letter a), of the Regulation, Article 114, paragraph 6 of the Code of Criminal Procedure, Article 137, paragraph 3, of the Code, and Article 7 of the Ethical Rules;

HAVING REGARD to the observations of February 16, 2023, in which Robin S.r.l., represented by Attorney XX, in addition to reiterating the arguments already presented in support of the legality of the contested treatment, raised the following objections:

- the Company is the publisher of several online sites, including "ilgiorno.it," while it is not the publisher of the print edition of the newspaper;
- the text of the article dated June 4, 2022, indicated by the complainant did not contain any information capable of identifying the six girls who had experienced episodes of violence, as it only included data regarding the (large) cities in which they lived, without publishing their initials;
- it cannot be correctly stated that there were "limited" measures to protect the identity of the girls – as noted in the aforementioned communication from the Guarantor dated February 7, 2023 – since the faces were pixelated and covered by FFP2 masks; therefore, the circumstance – asserted by the complainant – that the daughter would have been recognized is rather to be attributed to the circulation of other photographs taken and published without protective measures, a circulation to which the complainant explicitly refers multiple times in her statements, but which in no way can be attributed to Robin S.r.l.;

thus, the taking of images of the girls without masks is not attributable to the journalist called into question by the complainant;

- "it is not true and is firmly denied" that the aforementioned journalist introduced herself to the girls as an "attorney";
- while it is true that the photograph, after being promptly removed, was erroneously republished, it is equally true that – although the unlawfulness of its dissemination was not perceived – it was again and promptly removed;
- if someone recognized the complainant's daughter (and possibly the other girls), it is to be attributed not to the nature of the photograph, which was unsuitable for making her recognizable, but to the information present on other sites and the fact that it was known that the girl with her friends would be at Gardaland that day;

CONSIDERING that, unless the act constitutes a more serious crime, anyone who falsely declares or certifies news or circumstances or produces false acts or documents in a proceeding before the Guarantor is liable under Article 168 of the Code "Falsehood in declarations to the Guarantor and interruption of the execution of the tasks or exercise of the powers of the Guarantor";

CONSIDERING that the article in question must be attributed to the treatments carried out in the exercise of the freedom of expression and therefore Articles 136 - 139 of the Code and the Ethical Rules referred to in Article 139 of the same Code apply in their entirety;

NOTING that – as repeatedly asserted by the Authority – in order to balance the rights of the individual (in particular the right to privacy) with the freedom of expression, the regulations on the protection of personal data provide specific guarantees and precautions in the case of treatments carried out within the framework of freedom of expression, confirming their legality, even when they occur without the consent of the interested parties, provided that they take place in respect of the rights, fundamental freedoms, and dignity of the individuals to whom the processed data refer (cf. Articles 136 et seq. and Article 102, paragraph 2, letter a), of the Code) and as long as they are carried out in compliance with the principle of the essentiality of information regarding matters of public interest (Article 137, paragraph 3, of the Code; Article 6 of the Ethical Rules);

CONSIDERING that the respect of the aforementioned principle of the essentiality of information should be interpreted with greater rigor in cases where the news concerns minors, whose superior interest must be deemed to prevail based on what can be inferred from the principles and limits established by the Treviso Charter referred to in Article 7 of the Ethical Rules concerning treatments for journalistic purposes;

CONSIDERING also that the protection of minors operates all the more so when they are involved in news events as victims of criminal actions, in which case their anonymity must be guaranteed, avoiding any informative element capable of allowing their identification, even indirectly (Article 114, paragraph 6 of the Code of Criminal Procedure; Article 7, paragraph 1 of the Ethical Rules);

NOTING that, although the news reported by the publication subject to complaint concerns a matter of particular public interest, the subject of

****Attention from both local and national media, the image accompanying it, as published alongside the article of June 4 indicated by the complainant, does not appear justified by specific informational needs and is to be considered excessive given that:****

- ****It depicts minors in close-up, with only part of their faces pixelated, leaving other elements—such as hair, physical structure, and clothing—clearly visible, which could render them identifiable, at least within their social environment;****
- ****It is associated with acts of violence of which they have been victims;****
- ****It documents their presence in a particularly sensitive context—the police offices—which is inherently prejudicial to them;****

****TAKING NOTE** of the removal measures adopted by the Company in response to the request made by the complainant on June 5, 2022, which are not exhaustive due to the subsequent republishing of the image shortly thereafter; however, taking note of the new intervention aimed at remedying the incident (attributable—according to the Company—to an accidental error) and that, therefore, regarding this aspect, there are no grounds for the Authority to adopt measures in this regard;**

****CONSIDERING** that it is not possible to address the merits of the statements made by the

complainant regarding alleged improper or “deceptive” conduct underlying the acquisition of the images subject to complaint, given the absence of any evidence supporting such circumstance;**

****CONSIDERING**, on the other hand, that the publication of such images, as attached to the present complaint, constitutes a violation of Articles 137, paragraph 3, and 139 of the Code, Articles 6 and 7 of the Ethical Rules, as well as the general principles of legality and fairness in the processing of personal data as per Article 5, paragraph 1, letter a), of the Regulation, also in light of what is provided for in Article 114, paragraph 6, of the Code of Criminal Procedure;**

****NOTING** that compliance with the aforementioned Ethical Rules is an essential condition for the legality and fairness of personal data processing (Article 2-quater of the Code);**

****THEREFORE CONSIDERING**, pursuant to Article 57, paragraph 1, letter f), of the Regulation, that the complaint should be deemed founded and consequently that it is necessary to order against Robin S.r.l., pursuant to Article 58, paragraph 2, letter f), of the Regulation, the measure of prohibition of further processing, including online, of the personal data of the minor in whose interest the complaint was made, to be extended to the data of the other minors depicted therein, except for mere retention of the same for potential use in judicial proceedings;**

****REMEMBERING** that, in the event of non-compliance with the prohibition measure ordered by the Authority, the criminal sanction provided for in Article 170 of the Code may apply, in addition to the administrative sanction provided for in Article 83, paragraph 5, letter e), of the Regulation;**

****CONSIDERING** that it is necessary to adopt, regarding the established violation, an injunction order pursuant to Article 166, paragraph 7 of the Code and Article 18 of Law No. 689/1981 for the application of the administrative pecuniary sanction provided for in Article 83, paragraph 5 of the Regulation;**

****NOTING** that, for the determination of the amount of the pecuniary sanction, it is necessary to take into account the elements indicated in Article 83, paragraph 2, of the Regulation and that, in this case, the following aggravating circumstances must be considered:**

a) ****the seriousness of the violation (Article 83, paragraph 2, of the Regulation) and the harm suffered, taking into account the nature of the data processed, referring to minors in the context of a case of violence perpetrated against them,****

b) ****the adoption of inadequate measures to prevent the republication of the photograph subject to complaint after its removal at the request of the complainant,****

****and, as mitigating factors:****

c) ****the purposes pursued by the data controller, related to the exercise of the right to report and the freedom of information, as established by the Regulation (Article 85) and the Code (Articles 136 et seq.);****

d) ****the conditions on an organizational, economic, and professional level of the offender (Article 83, paragraph 2, letter k), of the Regulation), taking into account what emerged in the financial statements for the year 2022,****

e) ****the adoption of some, albeit limited, protective measures for the minors involved in the news events concerning the available images;****

f) ****the initiatives taken to mitigate the reported harm, through the definitive removal of the contested photograph;****

g) ****the cooperation shown during the proceedings (Article 83, paragraph 2, letter f), of the Regulation);****

****NOTING** that, based on the financial data of the Company, in this case, the maximum applicable penalty is €20,000,000 (20 million);**

****CONSIDERING** that, based on the overall elements indicated above and the principles of effectiveness, proportionality, and deterrence indicated in Article 83, paragraph 1 of the Regulation, the

administrative pecuniary sanction should be applied in the amount of €25,000.00 (twenty-five thousand), equal to 0.125% of the maximum penalty, against Robin S.r.l.;**

CONSIDERING that the conditions exist to proceed with the annotation in the internal register of the Authority as per Article 57, paragraph 1, letter u), of the Regulation, regarding the measures adopted in this case against Robin S.r.l. in accordance with Article 58, paragraph 2, of the same Regulation;

HAVING REGARD to the documentation on file;

Here is the translation of the legal document text into English:

HAVING REGARD to the observations made pursuant to Article 15 of the Garante Regulation No. 1/2000;

REPORTER Dr. Agostino Ghiglia;

ALL OF THE ABOVE CONSIDERED, THE Garante pursuant to Article 57, paragraph 1, letter f), of the Regulation:

a) acknowledges the measures adopted by the data controller already during the inquiry by the complainant aimed at removing the contested image and therefore considers that there are no grounds for the Authority to adopt measures in this regard;

b) pursuant to Article 58, paragraph 2, letter f) of the Regulation, orders the prohibition of further processing of the aforementioned image with reference to its further dissemination, including online, as well as in the historical archive, except for mere preservation for potential use in judicial proceedings;

ORDERS

pursuant to Articles 58, paragraph 2, letter i) and 83 of the Regulation, Robin S.r.l., owner of the newspaper ilgiorno.it, based in Bologna, Via Enrico Mattei 106 (ZIP 40138), Tax Code and Company Register No. 12741650159, in the person of the representative pro tempore, to pay the sum of €25,000.00 (twenty-five thousand) as an administrative pecuniary sanction for the violations indicated in the reasoning, representing that the offender, pursuant to Article 166, paragraph 8 of the Code, has the option to settle the dispute by payment, within thirty days, of an amount equal to half of the imposed sanction;

ORDERS

Robin S.r.l., in the event of failure to settle the dispute pursuant to the aforementioned Article 166, paragraph 8, of the Code, to pay the sum of €25,000.00 (twenty-five thousand) according to the methods indicated in the attachment, within 30 days from the notification of this provision, under penalty of the adoption of the consequent executive acts pursuant to Article 27 of Law No. 689/1981.

DISPOSES

pursuant to Article 17 of the Garante Regulation No. 1/2019, the annotation in the internal register of the Authority referred to in Article 57, paragraph 1, letter u), of the Regulation, of the measures adopted against Robin S.r.l., in accordance with Article 58, paragraph 2, of the same Regulation.; Pursuant to Article 78 of the Regulation, as well as Articles 152 of the Code and 10 of Legislative Decree No. 150 of September 1, 2011, an appeal against this provision may be filed with the ordinary judicial authority, with a petition submitted, alternatively, to the court of the place where the data controller resides or is based or to that of the place of residence of the interested party within thirty days from the date of communication of the provision itself or sixty days if the applicant resides abroad.

Rome, August 31, 2023

THE PRESIDENT

Stanzione

THE REPORTER

Ghiglia

THE SECRETARY GENERAL

Mattei

This translation preserves the meaning and important formatting cues as requested.